

Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Civil Revision No. **4542/2016**

Muhammad Sarwar (deceased) through legal heirs etc.

Versus

Mst. Anwar Kishwar Mirza etc.

J U D G M E N T

Date of hearing:	23.05.2025
Petitioners by:	Mr. Ghulam Farid Sanotra, Advocate.
Respondent No.1 by:	Proceeded against <i>ex parte</i> vide order dated 08.04.2025.
Respondents No. 2 to 4 by:	M/s Mohammad Ahsan Bhoon, Waqar A. Sheikh, Malik Muhammad Tariq Nonari, Muhammad Saeed Sheikh, Ch. Umar Farooq, Nouman Sarwar, Qamar Abbas and Rana Yasir, Advocates.

MALIK WAQAR HAIDER AWAN, J:- Through this Civil Revision, petitioners have assailed the validity of judgments dated 27.05.2014 and 23.06.2016 passed by learned Civil Judge 1st Class, Lahore and learned Additional District Judge, Lahore, respectively. By virtue of the former, application for restoration of the suit filed by predecessor-in-interest of petitioners was dismissed and through the latter, the appeal preferred thereagainst also met the same fate.

2. Before going into the merits of the case, it would be expedient to mention here that the instant Civil Revision is barred by time (21 days) and for seeking condonation of delay in filing the revision petition, petitioners moved CM No.1-C/2016 i.e. application under Section 5 and 12 of the Limitation Act, 1908 (hereinafter referred to as “Act”) read with Section 151 of the Code of Civil Procedure, 1908

(hereinafter called “**CPC**”) and Article 201 of the Constitution of Islamic Republic of Pakistan, 1973 (hereinafter cited as “**Constitution**”). Firstly, I would like to take up CM No.1-C/2016 and in case delay in filing this Civil Revision is ultimately condoned, merits of the case will be looked into.

3. Learned counsel for the petitioners, in order to meet with the point that this Civil Revision was filed with the delay of 21 days, contends that actually, Muhammad Sarwar (deceased) was pursuing the litigation who died a few months prior to passing of judgment by learned Additional District Judge, Lahore due to which his legal heirs and other petitioners were not in contact with their learned counsel representing them before learned appellate court. Submits that when petitioners were able to establish contact with their learned counsel on 08.10.2016, it was disclosed that appeal had been dismissed vide judgment dated 23.06.2016 and on the same day, an application for obtaining certified copies of the verdict was filed by them and thereafter, without further loss of time, this Civil Revision was filed on 15.10.2016. Adds that in appropriate cases, this Court may exercise *suo moto* jurisdiction, especially in cases of time barred revision petitions. Further submits that proceedings before revisional court being proceedings between court and court for ensuring strict adherence to law and safe administration of justice and if conditions *sine qua non* for its exercise were satisfied, even time barred revision petition could not deprive revisional court of its corrective and supervisory jurisdiction. Further contends that under Section 115 CPC, revisional court can exercise its revisional powers even on its own motion or on the application by an aggrieved party. Adds that revisional power was generally supervisory power and discretionary in nature where the Court was empowered to examine the record of any case decided by subordinate court to rectify any error or irregularity. Learned counsel also highlights the supervisory jurisdiction of this Court available under Article 201 of the Constitution to remove or

correct all jurisdictional errors floating on the record. Submits that judgments of both the learned courts below are illegal, without jurisdiction, liable to be revised and corrected by this Court under Section 115 CPC while exercising its revisional and *suo moto* jurisdiction while ignoring the point of limitation and keeping an eye on Article 10-A of the Constitution whereby opportunity of fair trial is guaranteed. Places reliance on the judgments reported as Mst. Suraya Parveen v. Mst. Rukhsana Hanif and others (2012 SCMR 656), Hafeez Ahmad and others v. Civil Judge, Lahore and others (PLD 2012 Supreme Court 400) and Farman Ali v. Muhammad Ishaq and others (PLD 2013 Supreme Court 392) and Province of Punjab through District Officer Revenue, Rawalpindi and others v. Muhammad Sarwar (2014 SCMR 1358).

4. Conversely, learned counsel for respondents No.2 to 4 jointly submit that revision petition is barred by 21 days. Learned counsel have seriously objected to the assertion of learned counsel for the petitioners that Muhammad Sarwar (deceased), who was the sole person pursuing the case before learned appellate court and in contact with his learned counsel, died on 19.03.2016 and just after 03 months, case was decided on 23.06.2016. Learned counsel have stated that legal heirs of Muhammad Sarwar (deceased) were brought on record in the appeal before learned Additional District Judge, Lahore and other petitioners were definitely in contact with their learned counsel and fully pursuing their appeal which was decided on merits. It has been contended that no cogent reason has been assigned for filing the instant Civil Revision with delay and while referring to **paragraph No.3 of CM No.1-C/2016**, states that assertion made and averred therein is belied by record as narrated above. Lastly submit that there is no plausible reason for filing the instant Civil Revision with delay and its condonation. Learned counsel have pointed out the negligence and *malafide* on the part of petitioners by referring that during the pendency of instant revision petition, another Civil Revision No.

4704/2016 against same judgments was filed which was dismissed as withdrawn on 22.03.2017 with costs in shape of penalty of Rs.20,000/- which clearly shows conduct and behaviour of petitioners. Learned counsel have further highlighted that in Civil Revision No.4704/2016 filed by petitioners against the same impugned judgments, 45 parties were mentioned meaning thereby petitioners have not arrayed all parties to the lis. At the fag end of their arguments, learned counsel submit that behaviour of petitioners is contumacious in nature as they failed to comply with order dated 08.03.2022 passed in this Civil Revision by virtue of which petitioners were directed to file all the documents relating to the proceedings of learned trial court and learned appellate court with an advance copy to learned counsel for respondents within three weeks but no faithful compliance was made by the petitioners, hence the instant revision petition, even otherwise, is liable to be dismissed under Order XVII Rule 3 CPC. Reliance has been placed on the dicta laid down in judgments reported as Province of Punjab through District Officer Revenue, Rawalpindi and others v. Muhammad Sarwar (2014 SCMR 1358), Noor Rahman v. Muhammad Azeem Bacha (2010 YLR 2469), City District Government, Lahore through District Coordination Officer, Lahore v. Mian Muhammad Saeed Amin (2006 SCMR 676), Government of Pakistan through Ministry of Works and another v. Messrs Malbrow Builders, Contractor, Sialkot (2006 SCMR 1248), Muhammad Jehangir Badar v. Chairman, N.A.B. and others (2004 SCMR 1632), Sheikh Muhammad Saleem v. Faiz Ahmad (PLD 2003 Supreme Court 628), Allah Dino and another v. Muhammad Shah and others (2001 SCMR 286), Abdul Rahim and another v. Mrs. Jannatay Bibi and 13 others (PLJ 2000 SC 616), Lahore Development Authority v. Muhammad Rashid (1997 SCMR 1224), Water and Power Development Authority v. Aurangzeb (1988 SCMR 1354), Mst. Hajran v. Sardar Muhammad (PLD 1970 Supreme Court 287), Pakistan Telecommunication Mobile Ltd. V. Furqaan Hayat Khan and others (2008 CLC 628),

Allah Dino v. Haji Ahmed through Legal Heirs and 3 others (PLD 2006 Karachi 148), Naheed Ahmad v. Asif Riaz and 3 others (PLD 1996 Lahore 702), Muhammad Ramzan v. Muhammad Bashir and another (2018 CLC 814).

5. I have heard learned counsel for the parties at full length and minutely gone through the record.

6. A special feature of this case which will have special effects or at least show the conduct, behaviour and negligence of petitioners' side as this is second episode of same nature. Previously, suit of the petitioners was dismissed for non-prosecution on 28.11.2008, thereafter an application seeking its restoration was filed on 09.04.2009 with a delay of 03 months 13 days. Learned trial court without issuance of notice accepted the application. The matter came up to this Court and finally order *qua* restoration of the suit was set aside and learned trial court was directed to decide the application seeking restoration of the suit after framing of issues and recording of evidence. Learned trial court, after framing of issues and recording of evidence, dismissed the application for restoration of suit of the petitioners on 27.05.2014. An appeal was filed which was also dismissed on merits on 23.06.2016. The instant time barred Civil Revision was filed thereagainst.

7. At the time of filing of instant Civil Revision, the period for instituting a revision petition was only governed by Section 115 CPC, which prescribed a limitation period of 90 days from the date of the impugned order, judgment or decree. Notably, the provisions of Section 5 of the Act were inapplicable to such proceedings, thereby precluding the condonation of delay in filing civil revisions. However, pursuant to a legislative amendment to the First Schedule of the Act (Article 162-A) dealing with limitation period for filing a civil revision under Section 115 CPC, now Section 5 of the Act extends to civil revisions as well, enabling Courts to condone delays but subject to sufficient cause shown by the party seeking condonation. It is

incumbent upon the party seeking such indulgence to establish justifiable grounds warranting the exercise of discretion under Section 5 of the Act.

8. Now it is settled law that law of limitation cannot be considered merely a formality and required to be observed being mandatory in nature as the purpose of introduction of law of limitation was to help vigilant and not indolent and helping hand might not be extended to a litigant who remained in deep slumber. For condonation of delay, sufficient cause was required to be shown which learned counsel for the petitioners has failed to do, rather in **paragraph No.3 of CM No. 1-C/2016**, the ground taken that Muhammad Sarwar died on 19.03.2016 and after his death, present petitioners were not aware of pendency of appeal is belied as before learned appellate court, legal heirs of Muhammad Sarwar (deceased) were brought on record. The amended Civil Appeal filed before learned Additional District Judge, Lahore is available at Page-29 (Annexure-B) of this Civil Revision wherein legal heirs of Muhammad Sarwar (deceased) were arrayed as party. Given this situation, plea taken by learned counsel for the petitioners does not find support by the record annexed with this Civil Revision.

9. In sequel to above, **paragraph No.3 of CM No.1-C/2016** divulge that source of knowledge of petitioners was the learned counsel, who was conducting the case before the court of learned Additional District Judge, Lahore but the application (CM No. 1-C/2016) is not supported by his affidavit.

10. It is well-settled principle of law that question of limitation being not a mere technicality cannot be taken lightly and rights accrued to other party due to limitation cannot be snatched away without sufficient cause and lawful justification which is missing in the case in hand. By now, it is settled law that limitation would run even against void orders affecting rights of any person. Reliance in this regard can

be placed on Kiramat Khan v. I.G., Frontier Corps and others (2023 SCMR 866) and Chief Engineer, Gujranwala Electric Power Company (GEPCO), Gujranwala v. Khalid Mehmood and others (2023 PLC 65).

11. Undeniably, for seeking condonation of delay in filing a revision petition, each and every day consumed for approaching this Court beyond the period of limitation has to be explained by the litigant and it has also to be established that delay had been caused due to the reasons beyond his control but situation is otherwise in this case.

12. It has been held in the case of Sheikh Muhammad Saleem (supra) that door of justice is closed after the prescribed period of limitation is elapsed and no plea of injustice, hardship or ignorance could be of any avail unless the delay of each day was properly explained and accounted for.

13. In a recent judgment passed by this Court reported as Muhammad Anwar (deceased) through LRs v. Shahadat Ali etc. [PLJ 2025 Civil (Note) 57], it has been held that law of limitation cannot be bypassed to rescue an indolent person who remained sleeping over infringement of his rights.

14. Interestingly, commonality of arguments amongst both sides is that they relied upon the same judgment of the Supreme Court of Pakistan reported as Province of Punjab through District Officer Revenue, Rawalpindi and others v. Muhammad Sarwar (2014 SCMR 1358) wherein the Apex Court also discussed in detail the dictum laid down in Hafeez Ahmad and others v. Civil Judge, Lahore and others (PLD 2012 Supreme Court 400) which is also referred to and relied upon by the petitioners' side. Paragraphs No.9 and 14 of the case of Province of Punjab through District Officer Revenue, Rawalpindi (supra) are quite relevant to delve into the controversy, which are reproduced below:-

9. Whether in Paragraph No.8 or No.13 of the judgment, it was clearly declared that an application by an aggrieved party to invoke the revisional jurisdiction of the Court must be filed within 90 days. In Hafeez Ahmad's case (supra) as well it was never declared that there was no time limitation for an aggrieved person to move the Court for exercise of its revisional jurisdiction. The hurdle of limitation was not done away with. If the argument of the learned Assistant Advocate-General is accepted that a time barred revision petition must be entertained, heard and decided by the High Court in its suo motu jurisdiction in the same manner as a petition filed within time, the second proviso to subsection (1) of section 115 of C.P.C. would be rendered redundant. Obviously the pronouncement in the case of Hafeez Ahmad (supra) cannot be construed so as to lead to such a consequence. The very adjudication by the Court of the question posed in the leave granting order regarding application of certain provisions of the Limitation Act to the filing of the revision petitions had proceeded on the premise that time limitation was relevant to the filing of such petitions.

14. It follows from the above discussion that there are two situations in which the Court can exercise its revisional powers; on its own motion; or on the application by an aggrieved party. The former is the general supervisory power and discretionary in nature where the Court is empowered to examine the record of any case decided by a Court subordinate to it to rectify any error or irregularity. Such power is exercisable where the Court itself finds any error of the nature provided in section 115, C.P.C. without there being any right in favour of a party aggrieved of an order or judgment of a subordinate Court. However, when the revisional jurisdiction is invoked by an aggrieved party, it is subject to the statutory provisions now incorporated in section 115, C.P.C. The second proviso thereto in unambiguous terms lays down the period of limitation for applying to the Court by mentioning that "provided that such application shall be made within ninety days". Like all other statutory provisions prescribing time period in which a matter is to be brought before the Court the second proviso to section 115(1), C.P.C. to be applied with the same vigour. Thus, where an aggrieved party seeks redressal against the Judgment or order through the revisional powers of the Court under section 115, C.P.C. he has ninety days to make the application, failing which the application is liable to be dismissed.

(Emphasis supplied)

15. In the light of above discussion, I do not find an iota of supporting factor in favour of petitioners for condonation of delay in

filing this Civil Revision. The role of Court is of a referee and Court cannot come for the rescue of persons who failed to highlight any sufficient cause for filing the case with delay.

16. The rest of the judgments relied upon by learned counsel for the petitioners are distinguishable on facts, therefore, do not have any direct applicability to the present case.

17. As learned counsel for the petitioners has failed to demonstrate any cogent or plausible explanation for the delay in instituting this Civil Revision and no sufficient cause has been established, therefore, no case for interference is made out. Resultantly, CM No.1-C/2016 seeking condonation of delay in filing this Civil Revision being meritless stands **dismissed**.

18. In view of dismissal of CM No.1-C/2016, the present Civil Revision, being time barred, is also **dismissed**.

(MALIK WAQAR HAIDER AWAN)
JUDGE

Signed
29.05.2025

Abis Ali

APPROVED FOR REPORTING

JUDGE